

Master Services Agreement — Skeleton

TEMPLATE ONLY — NOT LEGAL ADVICE. Review with a licensed attorney in your state before use. Bracketed items **[LIKE THIS]** must be completed or removed. This template has not been reviewed by counsel for your jurisdiction, your business, or your engagement. The annotations explain what each clause is generally intended to protect; they are not advice about your situation.

Chapter 6 · Stage 2 — Offer

The rules of the relationship. Signed once. Doesn't change per client — that's what the SOW is for.

Each clause below has a plain-English note saying what it's generally intended to protect. Read them. You should be able to explain every clause in your own agreement without notes.

MASTER SERVICES AGREEMENT

This Agreement is entered into as of **[DATE]** between **[YOUR LEGAL ENTITY]** ("Provider") and **[CLIENT LEGAL ENTITY]** ("Client").

1. SERVICES

Provider will perform the services described in one or more Statements of Work ("SOW") executed by both parties. Each SOW is governed by this Agreement.

Protects: the ability to add or change engagements without renegotiating the whole relationship.

2. TERM AND TERMINATION

This Agreement begins on the date above and continues until terminated. Either party may terminate on **[30]** days' written notice. Either party may terminate immediately for material breach not cured within **[15]** days of written notice.

Protects: both sides from being trapped. Mutual terms are fairer and easier to get signed.

3. FEES AND PAYMENT

Fees are stated in each SOW. Invoices are due **[NET 15]** from the invoice date. Late amounts may accrue interest at **[RATE]** per month. Provider may suspend services on accounts more than **[15]** days overdue.

Protects: against sixty-day invoices. The suspension right is what makes the due date mean something.

4. ADVERTISING SPEND

Any third-party advertising spend is billed by the platform directly to Client's own payment method. Provider does not fund, front, or invoice advertising spend.

Protects: against becoming an unsecured lender to a small business. Do not skip this one.

5. CLIENT RESPONSIBILITIES

Client will: provide timely access to accounts and assets; respond to appointments and inquiries generated under an SOW within **[TIMEFRAME]**; maintain the availability specified in the SOW; and provide accurate information for regulatory registrations.

Protects: against being blamed for a failure that was theirs. If they don't follow up on appointments, that's now a documented obligation.

6. CONSENT AND COMPLIANCE

Client represents that any contact data it provides was collected with all consents required by applicable law, including the Telephone Consumer Protection Act. Client is responsible for the lawfulness of its own contact lists. Provider will honor opt-out requests promptly.

Protects: against inheriting liability for a list you didn't build. Ask how it was collected anyway — a clause doesn't unsend a message.

7. OWNERSHIP OF ACCOUNTS AND ASSETS

[SPECIFY] which party owns: the advertising account, the tracking phone number, the CRM sub-account, the domain, and the contact data — during the engagement and on termination. **[SPECIFY]** what will be transferred or exported on termination and within what period.

Protects: against the ugliest fight in this business. Decide it while everyone's happy. Do not leave this bracketed.

8. CONFIDENTIALITY

Each party will keep the other's non-public information confidential and use it only to perform under this Agreement. Survives termination by **[2]** years.

Protects: their customer data, and your methods.

9. NO GUARANTEE OF RESULTS

Provider will perform the services described in each SOW. Provider does not guarantee any particular business, financial, or revenue outcome. Any performance figures discussed are descriptive of past work and are not a prediction of Client's results.

Protects: against the claim that you promised income. In Massachusetts this intersects with c. 93A § 11, which allows up to treble damages plus attorney's fees.

10. LIMITATION OF LIABILITY

Neither party's aggregate liability will exceed **[the fees paid under the applicable SOW in the preceding [3] months]**. Neither party is liable for indirect or consequential damages.

Protects: against a small engagement producing an outsized claim. Have your attorney set the cap.

11. ANNUAL ADJUSTMENT

Fees may be adjusted once per twelve-month period by up to **[X]%** on **[30]** days' written notice.

Protects: against being stuck at year-one pricing in year three. Much easier agreed at signing.

12. INDEPENDENT CONTRACTOR

Provider is an independent contractor. Nothing here creates a partnership, joint venture, or employment relationship.

13. GOVERNING LAW

Governed by the laws of **[STATE]**. **[SPECIFY dispute resolution — venue, or arbitration.]**

14. ENTIRE AGREEMENT

This Agreement and its SOWs are the entire agreement and supersede prior discussions. Amendments must be in writing and signed by both parties.

PROVIDER — Signature ____ Name __ Date _

CLIENT — Signature ____ Name __ Date _

BEFORE YOU USE THIS

- ☐ Reviewed by a licensed attorney in your state
- ☐ Every **[BRACKET]** completed or deliberately removed
- ☐ Clause 7 (ownership) fully specified — not left bracketed
- ☐ You can explain every clause in one sentence without notes